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IN THE HIGH COURT OF DELHI AT NEW DELHI

Decided on: 4th June, 2021

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W.P.(C) 4124/2020 & CM APPL. 14805/2020

ANNA YSR CONGRESS PARTY

..... Petitioner

Through: Mr. P.B. Suresh, Advocate with
Mr. Vipin Nair, Mr. Karthik
Jayashankar and Mr. Arindam
Ghosh, Advocates.

versus

**THE ELECTION COMMISSION OF INDIA
THROUGH ITS CHIEF ELECTION
COMMISSIONER & ANR.**

..... Respondents

Through: Mr. Sidhant Kumar, Advocate
with Manyaa Chandok,
Advocate for R-1.
Mr. Rajiv Nayar, Senior
Advocate with Mr. Mahfooz A.
Nazki, Mr. Gowtham Polanki,
Mr. Amitabh Sinha & Mr. Shrey
Sharma, Advocates for R-2.

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CORAM:

HON'BLE MR. JUSTICE PRATEEK JALAN

J U D G M E N T

1. By way of this petition under Article 226 of the Constitution, the petitioner seeks a direction upon the Respondent No. 1-Election Commission of India ["ECI"] to withdraw the registration of Respondent No. 2 herein, viz. "Yuvajana Sramika Rythu Congress

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Party”, as a political party, and also to withdraw its status as a recognised State party.

Facts

2. The petitioner and Respondent No. 2 are both political parties, registered under Section 29A of the Representation of the People Act, 1951 [“the Act”]. The petitioner’s name is “Anna YSR Congress Party”. It contends that Respondent No. 2, registered as “Yuvajana Sramika Rythu Congress Party”, is using an abbreviated form of its registered name, viz. “YSR Congress Party”, which is deceptively similar to the petitioner’s name. According to the petitioner, such use by Respondent No. 2 is contrary to directions of the ECI, and Respondent No. 2 is consequently liable to withdrawal of its registration, and its status as a “recognised political party”.

3. In 2010, Respondent No. 2 filed an application for registration as a political party under Section 29A of the Act. The name under which it originally sought registration was “YSR Congress Party”. Upon the ECI notifying an objection to the proposed name, Respondent No. 2 was ultimately registered on 31.01.2011 under the name “Yuvajana Sramika Rythu Congress Party”. It has thereafter acquired the status of a recognised State political party under paragraph 6A of the Election Symbols (Reservation and Allotment) Order, 1968 [“the Symbols Order”], which was issued by the ECI on 31.08.1968. Respondent No. 2 is at present the governing party in the State of Andhra Pradesh.

4. The petitioner applied to the ECI for registration in the year 2014. During the pendency of the application, Respondent No. 2, by a communication dated 31.10.2014, objected to the registration of the petitioner, stating that Respondent No. 2 is a recognized State political party and it is popularly known as “YSRCP”. The objection of Respondent No. 2 was on the ground that the name of the petitioner was very similar to the name of Respondent No. 2. However, this objection was rejected by the ECI’s communication dated 06.05.2015, and the ECI ultimately registered the petitioner as a political party by a communication dated 29.09.2015.

5. According to the petitioner, Respondent No. 2 uses the abbreviation “YSR Congress Party” in election propaganda, letterheads and other publicity material, although it uses the full form of its name in communications addressed to the ECI. The petitioner has addressed a representation dated 30.06.2020 to the ECI in which it has been alleged that Respondent No. 2 has contested the general elections to the Lok Sabha in 2019, using a name that is deceptively similar to that of the petitioner, rather than its own registered name. The petitioner sought an investigation and appropriate action against Respondent No. 2 based on this allegation.

6. As the ECI has not taken action as requested by the petitioner, the present writ petition has been filed seeking the following reliefs:-

“i) DIRECT Respondent No.1 to withdraw Respondent No.2’s status as “recognised political party” under Para 6A read with Para 16A of the Election Symbols (Reservation and Allotment) Order, 1968);

ii) *DIRECT the Respondent No.1 under its inherent powers to de-register Respondent No.2 as a political party under the Representation of People Act, 1951;*

(iii) *PASS any other order(s) as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case."*

Contentions of the parties

7. Mr. P.B. Suresh, learned counsel for the petitioner, referred to a communication dated 28.01.2011, sent by the ECI to Respondent No. 2 during the pendency of the application of Respondent No. 2 for registration. By the said communication, the ECI called the representatives of Respondent No. 2 to appear before it at a hearing scheduled on 31.01.2011. The ECI also called upon Respondent No. 2 to furnish a copy of its constitution with the new name at the time of hearing and was advised not to use the abbreviated form of the name of the party in "any documents of letterhead of the party". According to Mr. Suresh, Respondent No. 2 has failed to honour the specific advice of the ECI to this effect. He further submitted that, upon the registration of the petitioner as a political party with the name "Anna YSR Congress Party", no other political party could legitimately use the abbreviation "YSR".

8. Although no judgments were cited by Mr. Suresh in the course of oral arguments, the petitioner has filed written submissions after the conclusion of arguments in which it has relied upon *Shri Sadiq Ali and Anr. vs. The Election Commission of India, New Delhi and Ors.* (1972) 4 SCC 664 and *Kanhiya Lal Omar vs. R.K. Trivedi and Ors.*

(1985) 4 SCC 628 in support of the proposition that the Symbols Order has been issued by the ECI within its jurisdiction. The petitioner has also cited the judgment in *Union of India vs. Association for Democratic Reforms and Anr.* (2002) 5 SCC 294 to submit that the direction given by the ECI to Respondent No. 2 is binding upon Respondent No. 2.

9. Mr. Sidhant Kumar, learned counsel for the ECI, on the other hand, submitted that registration and recognition of political parties by the ECI is not concerned with the abbreviated names which parties may use, but with the names under which the political parties are registered. He explained that the ECI's communication dated 28.01.2011 was in the context of the pending application of Respondent No. 2 for registration. While calling the representatives of Respondent No. 2 for a hearing, the ECI advised them not to use the abbreviated form of the name of the party so as to avoid any confusion in the ECI's documentation. According to Mr. Kumar, the aforesaid advisory was not intended to cover communications made to other persons and, in any event, did not find place in the final order of registration dated 31.01.2011 by which Respondent No. 2 was registered.

10. Mr. Kumar also submitted that the petitioner had made an earlier representation to the ECI on the same lines, which was rejected by the ECI. Those documents have, according to Mr. Kumar, been suppressed from the present writ petition. In this connection, he referred me to correspondence dated 11.04.2018 and 22.05.2018

between the petitioner and the ECI, which are annexed to the ECI's counter affidavit as Annexure R-1 and Annexure R-2 respectively. By the communication dated 11.04.2018, the president of the petitioner-party complained to the ECI that Respondent No. 2 was using "YSR Congress Party" as its name and sought action to prevent the confusion. In the counter affidavit filed by the ECI, it has stated that the aforesaid representation was rejected by the ECI and communicated to the petitioner by a letter dated 22.05.2018. Mr. Kumar relied upon the following paragraph in the aforesaid letter dated 22.05.2018:-

"2. It may be noted that the name of the abovementioned party as registered with the Commission is Yuvajana Sramika Rythu Congress Party. It is informed that the name as registered with the Commission alone would be used on the records of the Commission and the election machinery. As regards the use of the abbreviated form of name by the party functionaries, it may be noted that there is no provision in the election law that prohibits use of abbreviated form of the name of a political party."

11. It may be noted that in the rejoinder filed by the petitioner to the ECI's counter-affidavit, the petitioner has denied receipt of the aforesaid communication dated 22.05.2018.

12. Mr. Rajiv Nayar, learned Senior Counsel for Respondent No. 2, submitted that it has been a registered political party since 2011 and a recognised political party in the State of Andhra Pradesh since 2014. Subsequent to bifurcation of the State in 2014, it is a recognised political party both in the State of Telangana as well as the State of

Andhra Pradesh. Drawing upon the final registration, communicated *vide* letter dated 31.01.2011 issued by the ECI to Respondent No. 2, Mr. Nayar contended that there was no restriction on the use of the abbreviated name in the aforesaid communication. He also supported Mr. Kumar's submission with regard to the earlier representation made by the petitioner.

13. Mr. Nayar further submitted that the writ petition is motivated by extraneous considerations, inasmuch as Respondent No. 2 has achieved considerable electoral success in the general elections to the Lok Sabha, as well as the State elections in Andhra Pradesh in the year 2019. He contended that the petitioner did not make any complaint with regard to the use of the abbreviated name by Respondent No. 2 from 2011 to 2019, but has ventilated these grievances only in reaction to the electoral success of Respondent No. 2. Mr. Nayar further contended that the present petition seems to be inspired by a dissident member of Respondent No. 2 itself. He submitted that a member of Respondent No. 2 was issued a Show Cause Notice on the ground of misconduct on 23.06.2020 [annexed to the petition as Annexure P-10], one week prior to the petitioner having issued its representation dated 30.06.2020 to the ECI, which has found place in the writ petition filed by the petitioner.

Analysis

14. Section 29A of the Act regarding registration of political parties, to the extent that it is relevant, reads as follows:-

“29A. Registration with the Election Commission of associations and bodies as political parties. — (1) Any association or body of individual citizens of India calling itself a political party and intending to avail itself of the provisions of this Part shall make an application to the Election Commission for its registration as a political party for the purposes of this Act.

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(4) Every such application shall contain the following particulars, namely:—

- (a) the name of the association or body;*
- (b) the State in which its head office is situate;*
- (c) the address to which letters and other communications meant for it should be sent;*
- (d) the names of its president, secretary, treasurer and other office-bearers;*
- (e) the numerical strength of its members, and if there are categories of its members, the numerical strength in each category;*
- (f) whether it has any local units; if so, at what levels;*
- (g) whether it is represented by any member or members in either House of Parliament or of any State Legislature; if so, the number of such member or members.*

(5) The application under sub-section (1) shall be accompanied by a copy of the memorandum or rules and regulations of the association or body, by whatever name called, and such memorandum or rules and regulations shall contain a specific provision that the association or body shall bear true faith and allegiance to the Constitution of India as by law established, and to the principles of socialism, secularism and democracy, and would uphold the sovereignty, unity and integrity of India.

(6) The Commission may call for such other particulars as it may deem fit from the association or body.

(7) After considering all the particulars as aforesaid in its possession and any other necessary and relevant factors and after giving the representatives of the association or body reasonable opportunity of being heard, the Commission shall decide either to register the association or body as a political party for the purposes of this Part, or not so to register it; and the Commission shall communicate its decision to the association or body: Provided that no association or body shall be registered as a political party under this sub-section unless the memorandum or rules and regulations of such association or body conform to the provisions of sub-section (5).

(8) The decision of the Commission shall be final.

(9) After an association or body has been registered as a political party as aforesaid, any change in its name, head office, office-bearers, address or in any other material matters shall be communicated to the Commission without delay.”

15. The recognition of a registered political party for the purposes of reservation and allotment of an election symbol is under the Symbols Order. The petitioner’s reliance is upon paragraphs 6A and 16A thereof, which provide as follows:-

“6-A. Conditions for recognition as a State party.—A political party shall be eligible for recognition as a State party in a State, if, and only if, any of the following conditions is fulfilled:

(i) At the last general election to the Legislative Assembly of the State, the candidates set up by the party have secured not less than six per cent of the total valid votes polled in the State; and, in addition, the party has returned at least two members to the Legislative Assembly of that State at such general election; or

- (ii) *At the last general election to the House of the People from that State, the candidates set up by the party have secured not less than six per cent of the total valid votes polled in the State; and, in addition, the party has returned at least one member to the House of the People from that State at such general election; or*
- (iii) *At the last general election to the Legislative Assembly of the State, the party has won at least three per cent of the total number of seats in the Legislative Assembly, (any fraction exceeding half being counted as one), or at least three seats in the Assembly, whichever is more; or*
- (iv) *At the last general election to the House of the People from the State, the party has returned at least one member to the House of the People for every 25 members or any fraction thereof allotted to that State; or*
- (v) *At the last general election to the House of the People from the State, or at the last general election to the Legislative Assembly of the State, the candidates set up by the party have secured not less than eight per cent of the total valid votes polled in the State.*

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16-A. Power of Commission to suspend or withdraw recognition of a recognised political party for its failure to observe Model Code of Conduct or follow lawful directions and instructions of the Commission.—
Notwithstanding anything in this Order, if the Commission is satisfied on information in its possession that a political party, recognised either as a National party or as a State party under the provisions of this Order, has failed or has refused or is refusing or has shown or is showing defiance by its conduct or otherwise (a) to observe the provisions of the 'Model Code of Conduct for Guidance of Political Parties and Candidates' as issued by the Commission in January, 1991 or as amended by it from time to time; or (b) to

follow or carry out the lawful directions and instructions of the Commission given from time to time with a view to furthering the conduct of free, fair and peaceful elections or safeguarding the interests of the general public and the electorate in particular, the Commission may, after taking into account all the available facts and circumstances of the case and after giving the party reasonable opportunity of showing cause in relation to the action proposed to be taken against it, either suspend, subject to such terms as the Commission may deem appropriate, or withdraw the recognition of such party as the National party or, as the case may be, the State party.”

(Emphasis supplied.)

16. Turning first to the question of withdrawal of recognition under the Symbols Order, it may be noticed that the provision sought to be invoked by the petitioner, viz. paragraph 16A(b), is predicated upon violation of lawful directions and instructions of the ECI. The only direction or instruction upon which the petitioner relies is contained in the ECI's communication to Respondent No. 2 dated 28.01.2011, prior to Respondent No. 2 having even been registered as a political party, and well prior to its recognition under the Symbols Order. Further, even according to the ECI, the aforesaid direction was limited to the context in which it was made, i.e. while fixing a hearing during the pendency of Respondent No. 2's application for registration.

17. The ECI is vested with plenary powers under Article 324 of the Constitution to superintend the process of elections to Parliament and State legislatures. While reiterating that its decisions are susceptible to judicial review, the Supreme Court in *Election Commission of India*

vs. *Union of India and Ors.* (1995) Supp (3) SCC 643 has struck a note of caution in the following terms:

“8. While we reiterate the judicial perception as to the constitutional position and the plenitude of the powers of the Election Commission as a high and exclusive body charged with the duty, at once sensitive and difficult, of overseeing free and fair elections in the country and that its perceptions of the imperatives for a free and fair elections are not to be interfered with by the courts, we must also indicate that there are no unreviewable discretions under the constitutional dispensation. ...”

(Emphasis supplied.)

In the present case, it has been stated in the counter affidavit filed on behalf of the ECI that the registration and recognition of political parties is not concerned with abbreviated names, but only with the official names of the parties concerned. The view of the ECI in this regard is not arbitrary and unreasonable, so as to require interference by this Court under Article 226 of the Constitution.

18. As mentioned above, the petitioner has, in its written submissions, cited two judgments of the Supreme Court which hold that the Symbols Order was validly issued in exercise of the ECI's power under Article 324 of the Constitution. The present case does not raise any dispute as to the validity of the Symbols Order, and the said judgments are therefore of no assistance to the petitioner.

19. The third judgment cited in the petitioner's written submissions is *Association for Democratic Reforms* (supra). Paragraph 46.2 of the said judgment has been emphasised, wherein the Supreme Court held that “a direction may mean an order issued to a particular individual

or a precept which many may have to follow and it may be a specific or a general order”. The petitioner’s reliance upon this judgment is also misplaced. It is not the respondents’ contention that the directions of the ECI did not bind Respondent No. 2, but that there was no direction of the nature asserted by the petitioner.

20. Turning next to the petitioner’s prayer for withdrawal of the registration granted to Respondent No. 2 under Section 29A of the Act, the judgment of the Supreme Court in *Indian National Congress (I) vs. Institute of Social Welfare and Ors.* (2002) 5 SCC 685 defines the limitations of this power in the following terms:

“32. *Deregistration of a political party is a serious matter as it involves divesting of the party of the statutory status of a registered political party. We are, therefore, of the view that unless there is express power of review conferred upon the Election Commission, the Commission has no power to entertain or enquire into the complaint for deregistering a political party for having violated the constitutional provisions.*

33. *However, there are three exceptions where the Commission can review its order registering a political party. One is where a political party obtained its registration by playing fraud on the Commission, secondly, it arises out of sub-section (9) of Section 29-A of the Act and thirdly, any like ground where no enquiry is called for on the part of the Election Commission, for example, where the political party concerned is declared unlawful by the Central Government under the provision of the Unlawful Activities (Prevention) Act, 1967 or any other similar law.*

34. *Coming to the first exception, it is almost settled law that fraud vitiates any act or order passed by any quasi-judicial authority even if no power of review is conferred*

upon it. In fact, fraud vitiates all actions. In Smith v. East Elloe Rural Distt. Council [(1956) 1 All ER 855 : 1956 AC 736 : (1956) 2 WLR 888 (HL)] it was stated that the effect of fraud would normally be to vitiate all acts and orders. In Indian Bank v. Satyam Fibres (India) (P) Ltd. [(1996) 5 SCC 550] it was held that a power to cancel/recall an order which has been obtained by forgery or fraud applies not only to courts of law, but also to statutory tribunals which do not have power of review. Thus, fraud or forgery practised by a political party while obtaining a registration, if comes to the notice of the Election Commission, it is open to the Commission to deregister such a political party.

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41. To sum up, what we have held in the foregoing paragraph is as under:

1. That there being no express provision in the Act or in the Symbols Order to cancel the registration of a political party, and as such no proceeding for deregistration can be taken by the Election Commission against a political party for having violated the terms of Section 29-A(5) of the Act on the complaint of the respondent.

2. The Election Commission while exercising its power to register a political party under Section 29-A of the Act, acts quasi-judicially and decision rendered by it is a quasi-judicial order and once a political party is registered, no power of review having been conferred on the Election Commission, it has no power to review the order registering a political party for having violated the provisions of the Constitution or for having committed breach of undertaking given to the Election Commission at the time of registration.

3. However, there are exceptions to the principle stated in paragraph 2 above where the Election Commission is not deprived of its power to cancel the registration. The exceptions are these:

(a) where a political party has obtained registration by practising fraud or forgery;

(b) where a registered political party amends its nomenclature of association, rules and regulations abrogating therein conforming to the provisions of Section 29-A(5) of the Act or intimating the Election Commission that it has ceased to have faith and allegiance to the Constitution of India or to the principles of socialism, secularism and democracy or it would not uphold the sovereignty, unity and integrity of India so as to comply with the provisions of Section 29-A(5) of the Act; and

(c) any like ground where no enquiry is called for on the part of the Commission.

4. The provisions of Section 21 of the General Clauses Act cannot be extended to the quasi-judicial authority. Since the Election Commission while exercising its power under Section 29-A of the Act acts quasi-judicially, the provisions of Section 21 of the General Clauses Act have no application.”

(Emphasis supplied.)

21. It appears from the aforesaid judgment that the power of the ECI to deregister a political party arises only in the three exceptional circumstances set out in paragraph 33 thereof. In the said judgment, the Supreme Court has held that a violation of an express undertaking given by a political party does not constitute sufficient ground to exercise the exceptional power. In the present case, the allegation is of violation of a direction which the ECI itself does not regard as binding upon Respondent No. 2, or applicable to the grievances raised by the petitioner. In such circumstances, the case does not fall within the limited exceptions laid out by the Court.

22. Factually also, it appears that the petitioner is not entitled to the relief sought in this petition. It bears emphasis that Respondent No. 2 was, in fact, registered well prior to the petitioner. When the petitioner applied for registration, Respondent No. 2 objected on the ground that it uses the abbreviation “YSRCP”. The written objection of Respondent No. 2 to the ECI has been annexed to the writ petition itself, and Mr. Suresh confirmed at the hearing of this petition, that it was forwarded to the petitioner also. The objection of Respondent No. 2 to the registration of the petitioner in the name of “Anna YSR Congress Party” was rejected by the communication of the ECI dated 06.05.2015 and the petitioner was ultimately registered on 29.09.2015.

23. These events demonstrate that, at the time when the petitioner sought registration as a political party with the name “Anna YSR Congress Party”, it was well aware that Respondent No. 2 is already registered as political party and uses an abbreviation which includes the term “YSR”. It is at that stage that the petitioner, if it had apprehended that any confusion would ensue from the names adopted by the petitioner and Respondent No. 2, could either have modified its own proposed name, or sought clarity as to the directions of the ECI in this regard. Having failed to do so and proceeded to register its name, knowing full well that Respondent No. 2 uses the term “YSR” in its abbreviated name also, the petitioner cannot make such a grievance at this stage. The petitioner has clearly and knowingly accepted this state of affairs at the time of its registration.

24. With regard to the contention raised by the respondents regarding suppression of material facts, it may be noted that the petitioner has not disputed that it had addressed a representation dated 11.04.2018 to the ECI on exactly the same issue, which is the subject matter of the present proceedings. Although, in the rejoinder filed on its behalf, the petitioner claims not to have received the ECI's response dated 22.05.2018, there is no dispute as to the fact that it had, in fact, made the said representation on 11.04.2018. Even assuming that the petitioner is right in its contention that the ECI's response was not received by it, it was incumbent upon the petitioner to disclose its earlier representation in the writ petition. Any person approaching the Court in a writ petition is duty bound to disclose all material facts and correspondence. The grant of relief under Article 226 of the Constitution is discretionary and depends upon various equitable considerations, including the consideration of delay. Even if the petitioner had made a representation in 2018 which was, according to it, not answered, the petitioner ought to have, at the very least, disclosed the same. It would have been relevant, for example, to the question as to whether the petitioner had abandoned its challenge. The fact that the petitioner had made such a representation may or may not have been dispositive of the case, but was certainly a material document to which it ought to have referred. In view of the fact that I have come to a conclusion against the petitioner on the merits of the present case, it is unnecessary to delve further into the issue of suppression.

Conclusion

25. For the reasons aforesaid, the petitioner's case in this writ petition is entirely unmerited. The writ petition, along with the pending application, is therefore dismissed.

PRATEEK JALAN, J.

JUNE 4, 2021

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Signature Not Verified

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